

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #2	CCRB Case #: 201508611	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 10/04/2015 11:00 PM	Location of Incident: Blake Avenue and Barbey Street	Precinct: 75	18 Mo. SOL 4/4/2017	EO SOL 4/4/2017	
Date/Time CV Reported Fri, 10/09/2015 2:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/09/2015 2:12 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Morgan	07698	949365	075 PCT
2. POM Marc Whirl	09207	937726	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Argila	15383	946752	075 PCT
2. SGT Adnan Radoncic	01316	930995	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Marc Whirl	Abuse: PO Marc Whirl searched § 87(2)(b)	
B.POM Kevin Morgan	Abuse: PO Kevin Morgan searched the vehicle in which § 87(2)(b) was an occupant.	
C.POM Kevin Morgan	Off. Language: PO Kevin Morgan made remarks to § 87(2)(b) based upon her gender.	
D.POM Kevin Morgan	Discourtesy: PO Kevin Morgan acted discourteously toward § 87(2)(b)	

Case Summary

On October 4, 2015, at 11:00 p.m., § 87(2)(b) was driving on Blake Avenue towards Barbey Street in Brooklyn with § 87(2)(b) in the passenger seat when she accelerated and found herself driving close behind an unmarked RMP. § 87(2)(b) pulled over to the side of the road and watched the RMP stop at the corner. After five minutes, the RMP made a U-turn and pulled up alongside § 87(2)(b)'s vehicle. PO Kevin Morgan, PO Marc Whirl, and PO James Argila of the 75th Precinct approached the vehicle and had § 87(2)(b) step outside. PO Whirl recovered marijuana from § 87(2)(b)'s bag after she consented to a search (**Allegation A**). § 87(2)(b) was upset about the stop of her vehicle and attempted to call the police. PO Morgan leaned into § 87(2)(b)'s vehicle during this time an effort to remove her phone from her but was unable to do so (**Allegation B**). PO Morgan informed § 87(2)(b) that he was unable to determine that she was a woman until he saw her license (**Allegation C**). § 87(2)(b) was issued a summons for § 87(2)(b) and § 87(2)(b) was issued a summons for § 87(2)(b). PO Morgan allegedly dropped the summons on § 87(2)(b)'s lap and did not hand it to her (**Allegation D**) (Board Review 01-03). There is no video for this case.

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation for this case, § 87(2)(b). The Office of the Comptroller of the City of New York has confirmed that a Notice of Claim has not been filed in regards to this case (Board Review 04). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) are not complainants or victims in any prior CCRB cases (Board Review 07-08).
- PO Morgan has been a member of the NYPD for five years and has had three former CCRB allegations involving three cases and no substantiated allegations. § 87(2)(g)
- PO Whirl has been a member of the NYPD for ten years and has had 20 prior CCRB allegations concerning ten cases and no substantiated allegations. § 87(2)(g)

Potential Issues

§ 87(2)(b) declined to cooperate with the investigation after providing her initial telephone statement.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: PO Marc Whirl searched § 87(2)(b)

Allegation B – Abuse of Authority: PO Kevin Morgan searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Whirl recovered marijuana from the bag that § 87(2)(b) was in possession of and that PO Morgan briefly entered § 87(2)(b)'s vehicle. It is also undisputed that PO Morgan communicated to § 87(2)(b) that he had difficulty determining her gender.

§ 87(2)(b) stated that § 87(2)(b) refused requests made by PO Whirl to open her bag for a search but that she consented upon the arrival of Sgt. Adnan Radoncic of the 75th Precinct, who asked her in a polite manner. § 87(2)(b) stated that she and § 87(2)(b) had been smoking marijuana in the vehicle shortly before being pulled over and that the scent remained inside of the vehicle at the time that they were detained.

§ 87(2)(b) confirmed that she permitted officers to look into her bag but differed from § 87(2)(b)'s statement, in that she stated that she provided permission to PO Whirl to look into her bag. § 87(2)(b) confirmed that a small quantity of marijuana and drug paraphernalia was recovered from the bag. § 87(2)(b) confirmed that she observed PO Morgan lean into the vehicle and demand that § 87(2)(b) hand her phone over to him.

PO Whirl confirmed that § 87(2)(b) gave him consent to search her bag after he informed her that he had seen her place a small quantity of marijuana inside. PO Whirl confirmed that he had smelled marijuana at the time that § 87(2)(b) stepped out of the vehicle. PO Whirl stated that PO Morgan leaned into the vehicle in an attempt to prevent § 87(2)(b) from making a call because they did not know who she was calling and detained civilians cannot make phone calls during traffic stops (Board Review 11).

PO Morgan confirmed that he detected a strong odor of marijuana emanating from the vehicle at the time that he approached and confirmed that he leaned into the vehicle while forcefully telling § 87(2)(b) to exit the vehicle. PO Morgan stated that only his head broke the plain of the door (Board Review 12). PO Argila confirmed that he smelled marijuana smoke and the vehicle interior appeared to be hazy. PO Argila did not know who recovered the marijuana from § 87(2)(b) or how this was done. PO Argila initially believed § 87(2)(b) to be a male and stated that she said, "Suck my dick," multiple times (Board Review 13).

Kentucky v. King, 131 S. Ct. 1849 (2011) makes clear that a warrantless search is permissible if conducted on the basis of consent (Board Review 14). According to People v. Valette, 88 A.D.3d 461 (2011), if during a lawful car stop, the police officer detects the odor of marijuana emanating from the vehicle, the police officer then has a probable cause to arrest the subject, and to search the vehicle under the automobile exception (Board Review 15).

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Offensive Language: PO Kevin Morgan made remarks to § 87(2)(b) based upon her gender.

Allegation D – Discourtesy: PO Kevin Morgan acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that PO Morgan informed her that he could not tell that she was a woman. § 87(2)(b) further stated that PO Morgan handed § 87(2)(b) her license and registration but dropped hers onto her lap.

PO Morgan confirmed that he had difficulty determining § 87(2)(b)'s gender and was unable to do so until he reviewed her license. PO Morgan denied ever referring to § 87(2)(b) as a male and denied making any comments to § 87(2)(b) to suggest that he believed that she was a male. PO Morgan confirmed that he dropped § 87(2)(b)'s summons onto her lap. PO Morgan stated that § 87(2)(b) was distracted at the time and highly irate. PO Morgan stated that § 87(2)(b) was not responsive to his instructions regarding what to do with her summons and that he dropped the paperwork on her lap when he could not draw her attention to him.

PO Whirl stated that he was not aware of § 87(2)(b)'s gender until seeing her identification and that he believed her to be a male and referred to her as such. PO Whirl stated that this belief was informed by § 87(2)(b)'s masculine appearance. PO Whirl further stated that § 87(2)(b) said, "Suck my dick," multiple times. PO Whirl needed his flashlight to look into the vehicle. PO Argila confirmed that he had difficulty determining § 87(2)(b)'s gender and that § 87(2)(b) was highly irate during this time. Neither PO Argila nor PO Whirl saw PO Morgan issue summonses to § 87(2)(b) and could not say whether he dropped them on her lap.

§ 87(2)(g)

Squad: 2

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date